

M/s Wwhite Metallic v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 33733 of 2014 · **Writ dismissed following connected Writ-C 30898 of 2016.**

HEADNOTE

A consumer's writ against a demand notice for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005, was dismissed by adopting the order of even date in Writ-C No. 30898 of 2016. An earlier Division Bench had granted interim restraint from demanding additional security, following similar protection in connected matters.

FACTUAL SUMMARY

M/s Wwhite Metallic, a consumer of Paschimanchal Vidyut Vitran Nigam Ltd., challenged a demand notice dated 22 May 2014 for additional security, said to have been raised under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. Counsel pointed to similar petitions, including an interim order dated 7 October 2009 in M/s Supreme Ceramics Limited's writ. On 3 July 2014 the Court connected the matter with other pending additional-security challenges and restrained the respondents from demanding additional security until further orders.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

A writ seeking quashing of a demand notice for additional security issued under clause 4.20 of the U.P. Electricity Supply Code, 2005, was dismissed, the Court adopting the order of even date in Writ-C No. 30898 of 2016. ¶ 2